

P O R T E R | S C O T T

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Attorneys for Defendants,

CSAA INSURANCE EXCHANGE, CARBONE,

SMITH & KOYAMA, AND MICHAEL R. CHAMBERS

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

v.

SUBHI ABDELHALIM; CSAA
INSURANCE EXCHANGE; DOES 1
through 50, inclusive,

Defendants.

Case No.: CGC-25-631801

**REQUEST FOR JUDICIAL NOTICE IN
SUPPORT OF DEMURRER TO
PLAINTIFF'S FIRST AMENDED
COMPLAINT**

DATE: MAY 12, 2026

TIME: 9:00 A.M.

DEPT: 301

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

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ELECTRONICALLY

FILED

*Superior Court of California,
County of San Francisco*

04/13/2026

Clerk of the Court

BY: AUSTIN LAM

Deputy Clerk

1 Defendants CSAA INSURANCE EXCHANGE, CARBONE, SMITH & KOYAMA, AND
2 MICHAEL R. CHAMBERS (“Defendants”) hereby request that this Court take judicial notice of
3 the following pursuant to California Evidence Code §§ 452, 453, and California Code of Civil
4 Procedure § 430.70:

5 1. Plaintiff’s operative First Amended Complaint in the instant action. (A true and
6 correct copy is attached to the Declaration of Tyler J. O’Connell as Exhibit A.)

7 2. Plaintiff’s operative First Amended Complaint in the related action,
8 contemporaneously filed with this action. That action is entitled *Rosario v. CSAA*, San Francisco
9 County Superior Court Case No. CGC-25-631802). (A true and correct copy is attached to the
10 Declaration of Tyler J. O’Connell as Exhibit B.)

11 3. Register of Actions, in *Rosario v. Abdelhalim*, San Francisco County Superior Court
12 Case No. CGC-21-594102. (A true and correct copy is attached to the Declaration of
13 Tyler J. O’Connell as Exhibit C.)

14 4. Defendant’s Substitution of Defense Counsel, filed in *Rosario v. Abdelhalim*,
15 San Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is
16 attached to the Declaration of Tyler J. O’Connell as Exhibit D.)

17 5. Defendant’s Motion in Limine # 6, filed in *Rosario v. Abdelhalim*, San Francisco
18 County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached to the
19 Declaration of Tyler J. O’Connell as Exhibit E.)

20 6. Defendant’s Motion in Limine # 8, filed in *Rosario v. Abdelhalim*, San Francisco
21 County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached to the
22 Declaration of Tyler J. O’Connell as Exhibit F.)

23 7. Defendant’s Motion in Limine # 17, filed in *Rosario v. Abdelhalim*, San Francisco
24 County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached to the
25 Declaration of Tyler J. O’Connell as Exhibit G.)

26 8. Order re Trial Scheduling and Motions in Limine, filed in *Rosario v. Abdelhalim*,
27 San Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is
28 attached to the Declaration of Tyler J. O’Connell as Exhibit H.)

1 9. Plaintiff's Judgment Notwithstanding the Verdict, filed in *Rosario v. Abdelhalim*,
2 San Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is
3 attached to the Declaration of Tyler J. O'Connell as Exhibit I.)

4 10. Plaintiff's Declaration in Support of Judgment Notwithstanding the Verdict, filed in
5 *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-594102. (A true
6 and correct copy is attached to the Declaration of Tyler J. O'Connell as Exhibit J.)

7 11. Defendant's Opposition to Plaintiff's Judgment Notwithstanding the Verdict, filed
8 in *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-594102. (A true
9 and correct copy is attached to the Declaration of Tyler J. O'Connell as Exhibit K.)

10 12. Plaintiff's Motion for New Trial, filed in *Rosario v. Abdelhalim*, San Francisco
11 County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached to the
12 Declaration of Tyler J. O'Connell as Exhibit L.)

13 13. Defendant's Opposition to Plaintiff's Motion for New Trial and Mistrial, filed in
14 *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-594102. (A true
15 and correct copy is attached to the Declaration of Tyler J. O'Connell as Exhibit M.)

16 14. Order on Plaintiff's Post-Trial Motions, filed in *Rosario v. Abdelhalim*,
17 San Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is
18 attached to the Declaration of Tyler J. O'Connell as Exhibit N.)

19 15. Plaintiff's Prayer to Judge East re: Motion for Disqualification of Judge Wong, filed
20 in *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-594102. (A true
21 and correct copy is attached to the Declaration of Tyler J. O'Connell as Exhibit O.)

22 16. Order Denying Plaintiff's "Prayer" and 170.6, filed in *Rosario v. Abdelhalim*,
23 San Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is
24 attached to the Declaration of Tyler J. O'Connell as Exhibit P.)

25 17. Plaintiff's Notice of Appeal, filed in *Rosario v. Abdelhalim*, San Francisco County
26 Superior Court Case No. CGC-21-594102. (A true and correct copy is attached to the Declaration
27 of Tyler J. O'Connell as Exhibit Q.)

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1 18. Plaintiff's Notice Designating Record on Appeal, filed in *Rosario v. Abdelhalim*, San
2 Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached
3 to the Declaration of Tyler J. O'Connell as Exhibit R.)

4 19. Defendant's Notice of Entry of Judgment, filed in *Rosario v. Abdelhalim*, San
5 Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached
6 to the Declaration of Tyler J. O'Connell as Exhibit S.)

7 20. Plaintiff's *Original* Complaint in Related Action. (A true and correct copy is attached
8 to the Declaration of Tyler J. O'Connell as Exhibit T.)

9 Pursuant to Evidence Code section 453, Defendants provided Plaintiff with sufficient notice
10 to meet its request that the Court take judicial notice of the above-referenced statutory records, by
11 way of Defendants' filings in this case. Defendants have also furnished the Court with sufficient
12 information to enable it to take the judicial notice of the matter. The pleadings and prior meet-and-
13 confer efforts put Plaintiff on notice that these Code provisions are at issue in this case.

14
15
16 Dated: April 13, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

19 By _____
20 Chad S. Tapp
21 Tyler J. O'Connell
22 Attorneys for Defendants
23 CSAA INSURANCE EXCHANGE,
24 CARBONE, SMITH & KOYAMA, AND
25 MICHAEL R. CHAMBERS
26
27
28

1 ***Franciscus Dylan Rosario v. Subhi Abdelhalim; CSAA Insurance Exchange; et al.***
2 ***San Francisco County Superior Court Case No.: CGC-25-631801***

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 13, 2026, I served the following document: **REQUEST FOR JUDICIAL**
7 **NOTICE IN SUPPORT OF DEMURRER TO PLAINTIFF'S FIRST AMENDED**
8 **COMPLAINT**

9 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served 10 the above referenced document(s) by registered or certified mail, return receipt requested, with the United 11 States Postal Service, in a sealed envelope with postage fully prepaid.
12	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed 13 below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's 14 office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being 15 served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning 16 and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the 17 party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
18	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
19	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

20 Addressed as follows:

21 **PLAINTIFF, IN PRO PER**

22 Franciscus Dylan Rosario
23 7624 Melody Drive
24 Rohnert Park, CA 94928
25 soltrinox@gmail.com

26 I declare under penalty of perjury under the laws of the State of California that the foregoing
27 is true and correct. Executed on Sacramento, California on April 13, 2026.

28 **Monique Schubert**
Monique Schubert